the said state, that if the said members would assent to and vote for the passing of the act of the said general assembly, entitled as aforesaid, the same then being before the said general assembly in the form of a bill, and if the said bill should pass into a law, that such members should have a share of, and be interested in, all the lands, which they the said Gunn, McAllister and Walker, and their associates, should purchase of the said state, by virtue of and under authority of the same law: and that divers of the said members to whom the said promise and assurance was so made as aforesaid, were unduly influenced thereby, and under such influence, did then and there vote for the passing the said bill into a law; by reason whereof, the said law was a nullity, and from the time of passing the same as aforesaid was, ever since has been, and now is, absolutely void and of no effect whatever; and that the title which the said state of Georgia had in the afore-granted premises, at any time whatever, was never legally conveyed to the said Peck, by force of the conveyances aforesaid."

The third count, after repeating all the averments and recitals contained in the second, further averred, that after the passing of the said act, and of the execution of the patent aforesaid, the general assembly of the state of Georgia, being a legislature of that state subsequent to that which passed the said act, at a session thereof, duly and legally holden at Augusta, in the said state, did, on the 13th of February 1796, because of the undue influence used as aforesaid, in procuring the said act to be passed, and for other causes, pass another certain act in the words following, that is to say, "An act declaring null and void a certain usurped act passed by the last legislature of this state, at Augusta, the 7th day of January 1795, under the pretended title of 'an act supplementary to an act entitled an act for appropri-

*90] ating a part of the unlocated *territory of the state for the payment of the late state troops, and for other purposes therein mentioned, declaring the right of this state to the unappropriated territory thereof for the protection of the frontiers, and for other purposes,' and for expunging from the public records the said usurped act, and declaring the right of this state to all lands lying within the boundaries therein mentioned:" By which, after a long preamble, it is enacted, "That the said usurped act passed on the 7th of January 1795, entitled, &c., be, and the same is hereby declared, null and void, and the grant or grants, right or rights, claim or claims, issued, deduced or derived therefrom, or from any clause, letter or spirit of the same, or any part of the same, is hereby also annulled, rendered void and of no effect; and as the same was made without constitutional authority, and fraudulently obtained, it is hereby declared of no binding force or effect on this state, or the people thereof, but is and are to be considered, both law and grant, as they ought to be, *ipso facto*, of themselves, void, and the territory therein mentioned is also hereby declared to be the sole property of the state, subject only to the right of treaty of the United States to enable the state to purchase, under its pre-emption right, the Indian title to the same." The 2d section directed the enrolled law, the grant, and all deeds, contracts, &c., relative to the purchase, to be expunged from the records of the state, &c. The 3d section declared, that neither the law nor the grant, nor any other conveyance or agreement relative thereto, shall be received in evidence in any court of law or equity in the state so far as to establish a right to the territory, or any part thereof, but they may be received in evi-